IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-503
CP (CAA) No.-94/230/232/PB/2020

IN THE MATTER OF:
M/s. A.V Computers Pvt. Ltd. & Anr. With M/s. Mercury Fabrics Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 15.02.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Mr. Iswar Mohapatra, Adv.
For the Respondent :
For the RD : Ms. Shankari Mishra, Adv.

ORDER

Heard the submissions made by Ld. Counsel for the Petitioners. Despite several notices have been issued by the Ld. Counsel for the Petitioners to the Income Tax Department showing the compliances to their observations, there is no response from the Income Tax Department. Therefore, in the interest of justice and fair play, Ld. Counsel for the Petitioners is directed to file last 3 years Income Tax Returns of the Petitioner Companies along with an affidavit cum undertaking with regard to Income Tax dues clearly stating the fact that in case Income Tax Department claims any dues, the same will be paid as per law.

Further, in the application for amalgamation, the appointed date for this amalgamation scheme was shown as 01.04.2020. Even after 01.04.2020 since the individuals returns are filed, Ld. Counsel is directed to take instructions

from his client regarding current appointed date and confirm the same by affidavit. List the matter on **01.03.2023.**

S/d-
(DR. BINOD KUMAR SINHA)
MEMBER (T)

S/d-
(P.S.N PRASAD)
MEMBER (J)

Amit Tiwari
15.02.2023